

Introduction: Understanding Public Policy through Its Instruments—From the Nature of Instruments to the Sociology of Public Policy Instrumentation

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Public policy instrumentation and its choice of tools and modes of operation are treated either as a kind of evidence (governing means making regulations, taxing, entering into contracts, communicating, etc.) or as if the questions it raises (the properties of instruments, justifications for choosing them, their applicability, etc.) are part of a rationality of methods without any autonomous meaning. This paper aims to explain the significance of a political sociology approach to public policy instruments in accounting for processes of public policy change: (1) public policy instrumentation is a major issue in public policy, since it reveals a (fairly explicit) theorization of the relationship between the governing and the governed: every instrument constitutes a condensed form of knowledge about social control and ways of exercising it; and (2) instruments at work are not neutral devices: they produce specific effects, independently of the objective pursued (the aims ascribed to them), which structure public policy according to their own logic.

Policy instruments, often analyzed as peripheral in the understanding of public policy, are back in favor. In Europe for instance, the *EU White Paper on Governance* (Commission of the European Communities 2001)¹ is a remarkable example of the somewhat naive expectations raised by “new” or “innovative” policy instruments of improvements in the effectiveness and democratization of this polity. In the United States, the major book edited by L. Salamon in 2002, *The Tools of Government, A Guide to the New Governance* (Salamon 2002), provides a clear and authoritative account of the importance of policy instruments in understanding contemporary governance. The issue of public policy instruments is still relatively little explored by academic analysts. However, a tradition of such research exists in the United States (on instruments of economic regulation), in the United Kingdom with Christopher Hood’s important work (Hood 1986), and in the Netherlands (Kickert, Klijn, and Koppenjan 1997). Hood’s article in this issue surveys the literature and typologies of

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instruments. In his review, he makes a distinction between the “institutional form as instrument” and the “politics of instrumentality.” Therefore in this introduction, we shall not return to that theme in this article.

The dynamics of growth of the state during the twentieth century were accompanied by the development and diversification of public policy instruments and by the accumulation of programs and policies in the different sectors where the state intervenes. Each phase of state development or restructuring has been accompanied by a new wave of innovations relating to these instruments. That was the case during the rapid growth of the welfare state in the postwar period.

The current phase is no exception. The proliferation of actors and coordination instruments has been noticed in an ever-increasing number of sectors, for instance, in recently expanded areas of public policy, such as policies on risk (environmental risks, health risks, etc.) (Gunningham and Grabosky 1998; Bressers and Hanf 1995; Hood, Rothstein, and Baldwin 2001), the regulation (statutory or otherwise) of the market, building infrastructures, running utilities, and state or welfare state reforms. Some authors have brought out a new paradigm: “the new governance” (Rhodes 1996; Salamon 2002) or “new negotiated governance,” in which public policies are less hierarchized, less organized within a sector demarcated, or structured by powerful interest groups (e.g., urban policy, environmental policy, new social policies or the negotiation of major infrastructures)—at the risk of denying the interplay of social interests and of masking power relations. Over and above deconstructing this issue (as well as the limits of government and failures of reform), research into government and public policies has highlighted the renewal of public policy instruments either for the development of depoliticized formulas in “the new governance” or through fostering powerful mechanisms for the control and direction of behaviors (Hood 1998).

However, public policy instrumentation and its choice of tools and modes of operation are generally treated either as a kind of evidence, as a purely superficial dimension (governing *means* making regulations, taxing, entering into contracts, communicating, etc.), or as if the questions it raises (the properties of instruments, justifications for choosing them, their applicability, etc.) are secondary issues, merely part of a rationality of methods without any autonomous meaning. A good deal of the public administration literature devoted to the issue of instrumentation is marked by a functionalist orientation, with five characteristic features:

1. Public policy is fundamentally conceived as pragmatic—that is, as a political and technical approach to solving problems via instruments.
2. It is argued that these instruments are “natural”; they are viewed as being “at our disposal,” and the only questions they raise relate to whether they are the best possible ones for meeting the objectives set.

3. The central set of issues is around the effectiveness of instruments. Research into the implementation of policies is largely devoted to analyzing the relevance of instruments and evaluating the effects they create.
4. Faced with the deficiencies of the classic tools, the search for new instruments is pragmatic in aim and is very often seen either as offering an alternative to the usual instruments (whose limits have been shown by the numerous works on implementation) or as designing meta-instruments to enable coordination of the traditional instruments (planning, organization charts, framework agreements).
5. Analyses often take as their point of departure either the importance of specific public policy networks or the autonomy of subsectors of society; but these lines converge when they make the choice and combination of instruments a central issue for a public policy conceived in terms of managing and regulating networks, far from the classic questions of political sociology.

By contrast, we argue that instrumentation is a significant avenue for reflection, primarily because it produces its own effects. In his major book on statistics, Alain Desrosières (2002) has clearly shown this: "Statistical information does not fall from heaven, purely the effect of a 'prior situation'. On the contrary, indeed: it can be seen as the temporary, fragile culmination of a series of equivalence agreements between beings that a multitude of disordered forces continually seek to differentiate and separate" (397). The common language and representations that drive statistics create the effects of truth and an interpretation of the world.

This introductory article aims to explain the significance of a political sociology approach to public policy instruments in accounting for processes of public policy change. We identify the different analytical dimensions of policy instruments and the process of instrumentation in order to analyze policy changes. The articles put forward in this special issue aims at concretely analyzing policy changes by using the policy instruments framework. We mainly present two arguments (1) public policy instrumentation is a major issue in public policy, as it reveals a (fairly explicit) theorization of the relationship between the governing and the governed: every instrument constitutes a condensed form of knowledge about social control and ways of exercising it, and (2) that instruments at work are not neutral devices: they produce specific effects, independently of the objective pursued (the aims ascribed to them), which structure public policy according to their own logic. The other articles in this issue of *Governance* then use this framework for the analysis of policy instruments to analyze cases of policy changes.

I—Political Sociology of Policy Instruments and Instrumentation

Public policies are often analyzed as the result of interests interplay or institutional structure. We want to argue that although instruments use a technical or functionalist approach, this conceals what is at stake politically. By emphasizing the political sociology of policy instruments, we want to stress power relations associated to instruments and issues of legitimacy, politicization, or depoliticization dynamics associated with different policy instruments.

Public policy is a sociopolitical space constructed as much through techniques and instruments as through aims or content. *A public policy instrument constitutes a device that is both technical and social, that organizes specific social relations between the state and those it is addressed to, according to the representations and meanings it carries. It is a particular type of institution, a technical device with the generic purpose of carrying a concrete concept of the politics/society relationship and sustained by a concept of regulation.* Using the concept of *public policy instrument* allows us to move beyond functionalist approaches, to see public policy from the angle of the instruments that structure policies. This choice of method replaces the classic approach through policy substance with observation and analysis from the point of view of instruments. In a way, it involves deconstruction through instruments, trying to see how the instrumentation approach allows us to address dimensions of public policy that would otherwise not be very visible. Moreover, public policy instruments are not tools with perfect axiological neutrality, equally available: on the contrary, they are bearers of values, fueled by one interpretation of the social and by precise notions of the mode of regulation envisaged.

It is possible to differentiate between levels of observation by distinguishing between “instrument,” “technique,” and “tool”: for the sake of clarity we suggest to understand

1. The instrument as a type of social institution (census taking, map making, statutory regulation, taxation).
2. The technique as a concrete device that operationalizes the instrument (statistical nomenclature, a type of graphic representation, a type of law or decree).
3. The tool as a micro device within a technique (statistical category, the scale of definition of a map, the type of obligation provided for by a legal text, presence/absence of sanction).

*Public policy instrumentation*²—in our understanding—means the set of problems posed by the choice and use of instruments (techniques, methods of operation, devices) that allow government policy to be made material and operational. Another way of formulating the issue is to say that it involves not only understanding the reasons that drive towards retaining one instrument rather than another, but also envisaging the effects produced by these choices. By way

of indication, a brief catalog of these instruments can be drawn up: legislative and regulatory, economic and fiscal, agreement- and incentive-based, information- and communication-based. But observation shows that it is exceptional for a policy, or even a program for action within a policy, to be monoinstrumental. Most often, the literature notes a plurality of instruments being mobilized and then raises the question of coordinating them (Bernelmans-Videc et al. 1998). This perspective ties in with some of the American literature, like the works of Linder and Peters (1990, 1989; Howlett 1991; Rose 1993), which points out the cognitive dimension of instruments. For them, the issue of the choice of instruments is intimately linked to the issue of policy design, which means "the development of a systematic understanding of the selection of instruments and an evaluative dimension" (Linder and Peters 1984).

Some examples taken from the articles published in this special issue give some concrete examples of both policy instruments and policy instrumentation.

For instance, in "The Hidden Politics of Administrative Reform: Cutting French Civil Service Wages with a Low-Profile Instrument" Philippe Bezès analyzes the "invention" of a new, low-profile policy instrument in the 1960s, and then follows its development, the conflict surrounding its growing role, and its long-term implications through to the 1990s. The RMS (*raisonnement en masse salariale*, a method that measures growth in wages using a calculation based on the overall wage bill) gradually became an unobtrusive strategic instrument of the policy of civil-service expenditure reduction. Bezès stresses the increasing role of automatic, incremental mechanisms (Weaver 1989). Despite some success, the extensive use of the RMS as a lever for the policy of economic stringency was a quasi-invisible public policy instrument whose inconveniences and limitations came clearly to light during the 1990s. In many ways, the robustness of the instrument—its guarantee of efficiency—also led to major drawbacks, resulting from its own properties and from the instrument dependency it created.

Olivier Borraz's article, "Governing Standards: The Rise of Standardization Processes in France and in the EU," shows how the sphere of standards has been extended, part of the process leading to the development of a regulatory state. Standards illustrate the tendency of the public authorities to delegate responsibility to private-sector organizations for preparing and monitoring implementation of documents that sometimes have almost the force of law. They are among those low-profile policy instruments that are beyond the reach of the usual political processes developed through consultation between different interests. Borraz analyzes the rise of these instruments and their impact on two contrasting polities: France and the EU.

Bruno Palier most clearly takes up the challenge of analyzing the relationship between choice of policy instruments and policy changes in his article, "Tracking the Evolution of a Single Instrument Can Reveal

Profound Changes: The Case of Funded Pensions in France.” He attempts to make sense of pensions reforms in France by arguing in a direction counter to the path dependence theory that underlined the dynamics of the frozen welfare state. He stresses the contrast between the classic approach to policy changes in that field (analysis of demographic, financial, and economic causal constraints; study of the government actors’ political and ideological positions; analysis of the mobilizations of coalitions of interests; consideration of the constraints exercised by political institutions) and an approach centered on the intellectual tracking of a particular instrument (in this case, funded pensions), which proves fruitful in understanding state pensions reforms in France. However, he also accurately points out that changing instruments can give the illusion of change, summarizing one case as follows: “Change the instruments so as not to change the world.”

In contrast, Desmond King’s article, “The American State and Social Engineering: Policy Instruments in Affirmative Action,” shows the origins, values, and long-term impact of a highly visible policy instrument: affirmative action. He emphasizes that this policy instrument is particularly salient in terms of representation and of the meaning it carries—aiming to do no less than redraw the boundaries of citizenship in the face of historical injustices. Thus, King gives a detailed analysis of the background and debates that led to this choice of instruments. He then follows the instrument over time, stressing the way in which it gradually gained ground in different policy fields—ranging from education to business ownership—within a context of permanent conflicts over legitimation. He concludes by looking at the added value of the “instrument” approach to analysis of the U.S. state.

Those examples demonstrate that the definition that we use attempts to respond to questions about the possibilities of distinguishing between the instruments and the aims pursued. According to Hood, “multipurpose instruments” exist that carry ambiguities (Hood 1998). But on the other hand, do pure, unambiguous instruments really exist? Do all types of taxes have the same meaning and the same scope? Similarly, much of the literature of the sociology of law shows the extremely heterogeneous nature of the legal provisions that organize the monitoring of sectors such as health and safety at work, consumer protection, competition, or the environment (Killias 1985; Rottluthner 1985). We take the view that every instrument has a history, of which it remains the bearer, and that its properties are indissociable from the aims attributed to it. Similarly, because an instrument has a generic scope—that is, it is intended to apply to diverse sectoral problems—it will be mobilized by policies that are very different in their form and their basis. However, our theoretical point of view involves not entering into an endless debate on the “nature” of instruments, but situating ourselves where we can view the effects that they generate, that is, looking from the point of view of the instrumentation at work. We do this from two complementary angles: by envisaging

first the effects generated by instruments in relative autonomy, then the political effects of instruments and the power relations that they organize.

This approach also relates to the literature from the history of technology and the sociology of science, which has denaturalized technical objects by showing that their progress relies more on the social networks that form in relation to them than on their own characteristics. Gilbert Simondon (1958) was one of the first to study an innovation not as the materialization of an initial idea but as an often chaotic dynamic that sets information, adaptation to constraints and arbitration on a path of convergence between divergent routes of development. He went on to talk about the process of concretization, taking into account the combination of heterogeneous factors whose interactions produce—or fail to produce—innovation. Madeleine Akrich's, Michel Callon's, and Bruno Latour's sociology of science (1988) developed this perspective by rejecting the retrospective view that suppresses moments of uncertainty and sees creation only as a series of inevitable stages moving from the abstract to the concrete, from the idea to its concretization. Translation of and through technical instruments is a constant process of relating information and actors, and of regularly reinterpreting the systems thus created.

As far as these general theoretical bases are concerned, thinking in the management sciences is highly convergent with ours. From 1979, Karl Weick studied the history of certain management instruments from an angle inspired by the sociology of science. He was able to show that some found their origin "in social games" while others were "enacted." One—fairly diversified—research trend aims to draw management tools, "accounts and counting," out of their invisibility and to describe their properties and specific effects (Berry 1983; Moisdon 1997). Behind the apparent rationality of organizations, this trend is attempting to understand the tacit rules imposed by management instruments and what they mean in terms of power and of dissemination of cognitive models (Boussard and Maugeri 2003). Using the terms "device," "tool," and "instrument" as equivalents, this literature concurs in pointing out that, while these management instruments are heterogeneous in nature, they all have three components: a technical substrate, a schematic representation of the organization, and a management philosophy (Tripiier 2003).

Public policy instrumentation is therefore a means of orienting relations between political society (via the administrative executive) and civil society (via its administered subjects), through intermediaries in the form of devices that mix technical components (measuring, calculating, the rule of law, procedure) and social components (representation, symbol). This instrumentation is expressed in a more or less standardized form—a required passage for public policy—and combines obligations, financial relations (tax deductions, economic aid), and methods of learning about populations (statistical observations). Max Weber (1968) talks at different times of the technical superiority of bureaucracy in comparison with other

forms of administration. He shows how a fully developed bureaucratic apparatus compares with other organizations. And the perfect adaptation of bureaucracy to capitalism is based on its capacity to produce calculability and predictability. These techniques have been enriched and diversified in the contemporary period (the twentieth century), with new frameworking tools based on contractualization or tools of communication (information required), which nevertheless still have the characteristics of devices.

James Scott in his book *Seeing Like a State*, provides many examples of ways through which medieval European states forged what he calls “tools of legibility” (Scott 1998, 25) such as various measures in order to ensure legitimate power and to develop rationalist interventionist schemes. His analysis of “the politics of measurement” is a good example of what is at stake in policy instrumentation. In the same vein Desrosières (2002) shows that, in eighteenth-century Germany, statistics were “a formal framework for comparing states. A complex classification aimed to make it easier to retain and to teach facts, and for those in government to use them,” which is why it produced a taxonomy before it went on to quantify.³

We should note, however, that the issue of selecting public policy instruments and their mode of operation is generally presented, in a functionalist manner, as a matter of simple technical choices. When a given analysis takes the issue of instruments into account, it is most often a secondary area, marginal by comparison with other variables such as institutions or the actors’ interests or beliefs (Sabatier 2000). However, there is a clear trend in the American literature toward taking into account certain political dimensions of instruments, viewed either through the justifications that accompany the use of one device or another (Salamon 1989, 2002) or as an indicator of failure in the handling of policies. This approach through instruments is a mode of reasoning that allows us to move beyond the division between politics and policies.

Instruments are institutions in the sociological meaning of the term. “Institution” is used to mean a more or less coordinated set of rules and procedures that governs the interactions and behaviors of actors and organizations (Powell and Di Maggio 1991). Thus, institutions provide a stable frame, within which anticipation reduces uncertainties and structures collective action. In the most firmly sociological version, or the nearest to culturalism, the view is taken that these regularities of behavior (e.g., appropriate behaviors) are obtained through cognitive and normative matrices, coordinated sets of values, beliefs, and principles of action, even through moral principles unequally assimilated by the actors and which guide their practices (March and Olsen 1989). In that sense, public policy instruments are not organizations, or agencies. A great deal of literature has shown how institutions structure public policies. We want to show how instruments—a particular type of institution—structure or influence public policy.

Instruments really are institutions, as they partly determine the way in which the actors are going to behave; they create uncertainties about the effects of the balance of power; they will eventually privilege certain actors and interests and exclude others; they constrain the actors while offering them possibilities; they drive forward a certain representation of problems. The social and political actors therefore have capacities for action that differ widely according to the instruments chosen. Once in place, these instruments open new perspectives for use or interpretation by political entrepreneurs, which have not been provided for and are difficult to control, thus fueling a dynamic of institutionalization (Fligstein, Stone, and Sandholz 2001). The instruments partly determine what resources can be used and by whom. Like any institution, instruments allow forms of collective action to stabilize, and make the actors' behavior more predictable and probably more visible.

From this angle, instrumentation is really a political issue, as the choice of instrument—which, moreover, may form the object of political conflicts—will partly structure the process and its results. Taking an interest in instruments must not in any way justify the erasure of the political. On the contrary, the more public policy is defined through its instruments, the more the issues of instrumentation risk raising conflicts between different actors, interests, and organizations. The most powerful actors will be induced to support the adoption of certain instruments rather than others. As Peters (2002) wisely points out, to start by analyzing the interests implicated in the choice of instruments is always a good idea in the social sciences, even if this dimension frequently proves insufficient on its own.

From there, we need to focus more closely on two major, interlinked questions. First of all, what relationship exists between a particular public policy instrument (or group of policy instruments) and politics? That is, what is their ideological scope, and to what extent are they linked to the policy stream? Up to what point are they adaptable to immediate and diverse political circumstances or, on the other hand, what is their political connotation? Next, it is also necessary to focus more closely on the hypothesis that choices of instruments are signifiers of choices of policies and of the characteristics of these. They can then be seen as tracers, analyzers of changes in policies. The type of instrument used, its properties, and the justifications for these choices often seem to us to be more revealing than accounts of motives or later discursive rationalizations. We do not seek to position ourselves as speaking on behalf of a “new” approach or a paradigm that might triumph over anything currently dominant in the public policy field. Rather, we would like to sharpen existing conceptual tools. Nor is our intention normative: we do not seek to identify and promote “better instruments” (Peters and Van Nispen 1998). The public policy instrument approach is not a functional substitute for other existing approaches, and we do not intend to succumb to marveling at “the whole instrument” in the way characteristic of some of

the “new governance” literature (Salamon 2002). Our objective is to examine critically what this perspective can bring to the political sociology of public policy. There is no doubt that focusing on the instruments or their diffusion may run the risk of undermining the political dimensions of public policies.

II—Instrumentation Has Its Own Effects

If we look first of all at the specificity of instruments and shed the illusion of their neutrality, we can move beyond these assumptions. Instruments at work are not purely technical: they produce specific effects, independently of their stated objectives (the aims ascribed to them), and they structure public policy according to their own logic. We should then go on to look at the specific dynamic of instrumentation. Public policy instruments are not inert, simply available to sociopolitical mobilizations. They have their own force of action: as they are used, they tend to produce original and sometimes unexpected effects.⁴ Three main effects of instruments may be noted: inertia effect, a particular representation of the issue at stake, and a specific problematization of the issue.

First of all, the instrument creates inertia effects, enabling resistance to outside pressures (such as conflicts of interest between actor-users, or global political changes). In reforms of administration, for example, the introduction or abolition of an authorization procedure or a tax privilege is not merely a question of utility. Instruments constitute a point of inevitable passage and play a part in what Callon (1986) has called the stage of “problematization,” which allows heterogeneous actors to come together around issues and agree to work on them jointly. Desrosières (2002) has shown how, in the nineteenth century, the statistical frame of reference was imposed on debates about the social question, even on those who had been at the outset the most virulent critics of this tool: statistics “became almost inevitable points of passage for the supporters of other lines of argument.” But problematization also requires all the actors involved to move from one place to another, to make a detour away from their initial conceptualization.

The instrument also produces a specific representation of the issue it is handling. To quote Desrosières (2002) again: “Another method of using statistics in the language of policy can be envisaged. It relies on the idea that the conventions defining objects actually engender realities, since these objects seem to be able to resist all the tribulations thrown at them” (412). This construction of agreed realities is found in the use of other instruments. Thus, regulating an activity by imposing authorization a priori or declaration a posteriori signals recognition that this sphere is clearly subject to “good police” activity, under the supervision of state prescriptions adapted to the risks incurred. Regulation thus draws attention to potential dangers and generally leads to powers being granted to particular administrative services. This instrument-engendered represen-

tation is based on two particular components. First, it offers a framework for describing the social, a categorization of the situation addressed. Desrosières (2002) has clearly shown that during the eighteenth century, the chief activity of statistics was more taxonomic than quantifying: the ambition to count was preceded by a focus on descriptive categories. Another example is the construction of indexes (of prices, unemployment rates, educational achievement, etc.), which is now a commonplace technique for standardizing information through combining different measures in a form considered to be communicable. However, strong controversies regularly develop around the concept of the index and the methods of calculation that underpin it. The history of indexes and their transformation provides evidence, beyond technical debates, of different positions on how best to capture what is at stake.

Finally, the instrument leads to a particular problematization of the issue, as it hierarchizes variables and can even lead to an explanatory system. Thus, Desrosières (2002) recalls that ever since the days of Adolphe Quêtelet (1830), the calculation of averages and the search for regularity have led to systems of causal interpretations that are always presented as scientifically justified. For about 20 years, controversies around the measurement of insecurity through registered delinquency statistics have regularly led to an interpretative model that associates youth, violence against persons, and areas inhabited by immigrant communities. Having been fully accepted by police and judicial actors and political decision makers (and amplified by the media), this interpretative model has proved extremely difficult to move away from.

Instrumentation as Implicit Political Theorization

Public policy instrumentation reveals a (fairly explicit) theorization of the relationship between the governing and the governed. In this sense, it can be argued that every public policy instrument constitutes a condensed and finalized form of knowledge about social control and ways of exercising it. Here we can usefully refer to Gaston Bachelard's felicitous turn of phrase: he viewed technical instruments as "the concretization of a theory." This avenue of thinking should show that instrumentation raises central questions not only for the understanding of styles (modes) of government but also for the understanding of contemporary changes to public policy (growing experimentation with new instruments, coordination between instruments). Weber (1968) too, in his analyses, stressed that administration and its techniques are interdependent with domination. Administration, according to Weber, is the system of practices best adapted to legal rational domination.

In order to clarify the place of instruments in the technologies of government, we propose to differentiate between its various forms and to distinguish five major models. This typology relies partly on the one developed by Hood and based on the resources mobilized by the public

TABLE 1
Typology of Policy Instrument

Type of Instrument	Type of Political Relations	Type of Legitimacy
Legislative and Regulatory	Social Guardian State	Imposition of a General Interest by Mandated Elected Representatives
Economic and Fiscal	Wealth Producer State, and Redistributive State	Seeks Benefit to the Community Social and Economic Efficiency
Agreement-Based and Incentive-Based	Mobilizing State	Seeks Direct Involvement
Information-Based and Communication-Based	Audience Democracy	Explanation of Decisions and Accountability of Actors
De Facto and De Jure Standards Best Practices	Adjustments within Civil Society Competitive Mechanisms	Mixed: Scientific/ Technical, Democratically Negotiated and/or Competition, Pressure of Market Mechanisms

authorities (modality, authority, pressure, institution). We have reformulated and supplemented it, taking into account types of political relations organized by instruments and the types of legitimacy that such relations presuppose (Table 1) (Bennett 1997).

Legislative and regulatory instruments are tools that borrow from the routinized legal forms constituting the archetype of state interventionism. However, the latter is not homogeneous, and much of the literature of the sociology of law has shown that this type of regulatory instrument includes three fairly clearly articulated dimensions. First of all, legislative and regulatory instruments exercise a symbolic function, as they are an attribute of legitimate power and draw their strength from their observance of the decision-making procedure that precedes them. Beyond this eminent manifestation of legitimate power, legislative and regulatory measures also have an axiological function: they set out the values and interests protected by the state. Finally, they fulfill a pragmatic function, in directing social behaviors and organizing supervisory systems. These three functions are combined in different proportions, and there are very many examples of situations in which the symbolic dimension prevails over the organization of methods of action. But sending out these political signals is part of a general pedagogical thrust, combining the need to demonstrate will with the need to frame activities.

Economic and fiscal instruments are close to legislative and regulatory instruments, since they follow the same route, deriving their force and their legitimacy from having been developed on a legal basis.

However, they are perceived in terms of their economic and social efficiency. Their peculiar feature is that they use monetary techniques and tools, either to levy resources intended to be redistributed (taxes, fees) or to direct the behaviors of actors (through subsidies or allowing deduction of expenses). This type of instrument must also be situated in relation to particular concepts of the state, which may be shown through types of taxation (wealth tax, tax earmarked for social purposes, the system of taxing financial products) or through the use of techniques such as deficit reduction or European convergence indicators (Le Galès 2002).

For ease, the three other types of instrument can be referred to under the heading of "new public policy instruments." They have in common the fact that they offer less interventionist forms of public regulation, taking into account the recurrent criticisms directed at instruments of the "command and control" type. In this sense, they lend themselves to organizing a different kind of political relations, based on communication and consultation, and they help to renew the foundations of legitimacy. We shall end by presenting a few observations about these three categories—instruments based on agreement, instruments based on information, and *de facto* standards.

"Govern by contract" has become a general injunction nowadays, as if the use of such instruments meant *a priori* choosing a just and valid approach. In fact, the use of this type of instrument can be justified on two levels. Firstly, this mode of intervention has become generalized in a context strongly critical of bureaucracy—of its cumbersome yet abstract nature, and of the way it reduces accountability. Further criticism has related to the rigidity of legislative and regulatory rules and to the fact that their universality leads to impasse. In societies with growing mobility, motivated by sectors and subsectors in search of permanent normative autonomy, only participatory instruments are supposed to be able to provide adequate modes of regulation. A framework of agreements, with the incentive forms linked to it, presupposes a state in retreat from its traditional functions, renouncing its power of constraint and becoming involved in modes of ostensibly contractual exchange (Lascoumes and Valluy 1996). Ostensibly, the central questions of autonomy of wills, of reciprocity of benefits, and of sanction for nonobservance of undertakings are rarely taken into account. The interventionist state is therefore supposed to be giving way to a state that is prime mover or coordinator, noninterventionist and principally mobilizing, integrating and bringing into coherence. The little research conducted in this area concurs in the view that this type of instrument's chief legitimacy derives more from the modernist and, above all, liberal image of public policy, of which it is the bearer, than from its real effectiveness, which is in fact rarely evaluated (Gaudin 1999).

Communication-based and information-based, these instruments form part of the development of what is generally called "audience democ-

racy" or "democracy of opinion"—that is, a relatively autonomous public space in the political sphere traditionally based on representation. There has been a decisive change since the 1970s, in the form of a reversal: citizens' rights of access to information held by the public authority have been developed into obligations on the public authorities to inform citizens ("mandatory disclosure") (Barbach and Kagan 1992). In addition, in the growing use of information and communication instruments that correspond to situations in which information or communication obligations have been instituted, there is a particular concept of the political.

De jure and de facto standards, these organize specific power relations within civil society between economic actors (competition-merger) and between economic actors and nongovernment organizations (consumers, environmentalists, etc.) (Kettl 1993). They are based on a mixed legitimacy that combines a scientific and technical rationality, helping to neutralize their political significance, with a democratic rationality based on their negotiated development and the cooperative approaches that they foster. They may also allow the imposition of objectives and competition mechanisms and exercise strong coercion.

An instrument-focused approach is significant because it can supplement the classic views that focus on organization or on the interplay of actors and representations, which nowadays largely dominate public policy analysis. It enables different questions to be asked, and the traditional questions to be integrated in new way. This issue of *Governance* tackles this set of problems, beginning with Hood's article. He picks up again from his original 1982 work, scans the literature, and reviews proposed typologies of instruments.

III—Instruments for Conceiving Change in Public Policies or Changing Instruments to Avoid Political Changes

Over the past three decades, questions of the governability and governance of contemporary societies have been raised in different settings. States are parties to multinational regional logics of institutionalization (for instance, the EU), to diverse and contradictory globalization processes, to the escape of some social groups and to economic flows, to the formation of transnational actors partly beyond the boundaries and injunctions of governments. Within the EU, for instance, the state no longer mints coins, no longer makes war on its neighbor; it has accepted the free movement of goods and people, and an EU central bank. Enterprises, social mobilizations, and diverse actors all have differing capacities for access to public goods or political resources beyond the state—the capacities for organization and resistance that, in the 1970s, brought out the theme of the ungovernability of complex societies (Linder and Peters 1990; Mayntz 1993, 1999). This literature has reintroduced the issue of instruments, through questions about the management and governance of public subsystems of societies and policy networks (Kickert,

Klijn, and Koppenjan 1997; Lascoumes and Valluy 1996; Morand 1991; Rhodes 1996).

In other words, in addition to the question of who governs democracies—as well as who guides, who directs society, who organizes the debate about collective aims—there is now the question of how to govern increasingly differentiated societies (Senellart 1995). Jean Leca's definition of government (1995) differentiates between rules (the constitution), organs of government, processes of aggregation and direction, and the results of action. "Governing means taking decisions, resolving conflicts, producing public goods, coordinating private behaviors, regulating markets, organizing elections, extracting resources, allocating spending" (Jean Leca, quoted by Pierre Favre 2003).

Innovations in policy instruments are also related to what is sometimes called "a second age of democracy," when the definition of the common good is no longer the sole monopoly of legitimate governments. This perspective has already been amply covered by Bernard Manin in his work analyzing "audience democracy." In his view, political supply is increasingly linked to audience demand,⁵ which is all the more important because there is a "freedom of public opinion"⁶ that is increasingly autonomous of traditional partisan cleavages. Public information is thus becoming a significant stake, allowing demand and "the terms of choice" to be directed: the pairing of "the right to information" with "the obligation to inform" appears to be a new "arcanum of power" (Lascoumes 1998). Power has long been exercised through the collection and centralization of the information that guides political decision making, but it remains a good retained by the public authorities. The next step, which came with the development of welfare states and, above all, with the intense interventionism that accompanied this, was that neocorporatism and the growing interpenetration of public and private spaces necessitated an easing of relations between the governing and the governed. Under the cover of "modernization" and "participation," new instruments were proposed that would ensure that public management functioned better, by increasingly subjectivizing political relations and recognizing that citizens could claim "second-generation human rights" from the state. A new relationship was established between the right to political expression and the right to information. After organizing rights of access that required the citizen to play an active role, the state then set up various obligations to provide information ("information required" or "mandatory disclosure") (Barbach and Kagan 1992), which put an onus on the person who possesses the information, whether public (e.g., risks of natural catastrophe) or private (e.g., the pharmaceutical industry). This has a twofold objective: on the one hand, to ensure that the public is informed of risk situations; on the other, to exercise normative pressure to frame better practices on the person who has to give the information. More broadly, Giandomenico Majone (1997), in his study of new forms of regulation, takes the view that European agencies are increasingly tend-

ing to replace regulatory “command and control” forms of regulation with a form of regulation by information—one that privileges persuasion (Joerges and Neyer 1997). These policies of continuous production and dissemination of information have both constitutive and instrumental functions in their sphere of competence. They act on three levels: programming and constructing national agendas, orienting methods and objectives, and, finally, creating sensitivity to forecasting by validating aims other than those that are already routinized.

The creation of a public policy instrument may serve to reveal a more profound change in public policy—in its meaning, in its cognitive and normative framework, and in its results. Writers of the various neoinstitutionalist persuasions have all turned toward highlighting institutional reasons for obstacles to change and tendencies toward inertia. Peter Hall first revived the question of public policy change when he identified different dimensions of change in this area, differentiating between reform objectives, instruments, and their use or their parameters: this led him to hierarchize three orders of public policy change (Hall 1986, 1993). Thus, he situated instruments at the heart of his analysis of public policy change. This idea was taken up by Bruno Jobert (1994), for whom public policy change comes about more through formulas than by pursuing a set of major aims. Bruno Palier (2000) developed this framework when he contrasted the apparent resistance of the welfare state in France with the continuous change of instruments (minimum income, tax earmarked for social purposes, universal sickness cover, tax credits), which gives a totally different image of the dynamics of change. In other words, change may come about through instruments or techniques, without agreement on the aims or principles of reform. Thus, Palier notes that analysis through instruments may be used as a marker to analyze change, as it is possible to envisage all the possible combinations—for example, change of instruments without change of aims, modification of the use or degree of use of existing instruments, change in objectives through change of instrument, or change of instrument that modifies objectives and results and so gradually leads to change in objectives. Stressing policy instruments is yet another way of criticizing the “heroic” view of policy changes often put forward by the actors.

Disconnecting policy instruments from political goals is crucial to the analysis of policy changes. Our hypothesis here is that the revival of these questions on public policy instrumentation may relate to the fact that actors find it easier to reach agreement on methods than goals—although what are instruments for some groups might be goals for others. Debates about instruments may offer a means of structuring a space for short-term exchanges, for negotiations and agreements, leaving aside the most problematic issues. The search for new policy instruments also often takes place when other stronger mechanisms of coordination have failed. The case of the rise (and fall?) of the “Open Method of Coordination” in the EU provides a good illustration.⁷ Is the proliferation of instruments also

a way of dissipating the political questions? This suspicion is obviously based on the criticism of public policy formularies developed in the most neoliberal version of "new public management." Our next hypothesis is that the importation and use of a whole series of public policy instruments are determined by the fact that the state is restructuring, moving toward becoming a regulatory state and/or influenced by neoliberal ideas. "New public management," in a simplified version, is expressed through the application to public management of the rational choice principle and of classic microeconomics, and sometimes more directly through transferring private management formulas to public management. This leads, among other things, to a fragmentation of public policy instruments, to growing specialization and strong competition between different types of instruments (judged by the measure of a cost/efficiency relationship) and to strong moves in favor of instruments that are more incentive-based than classically normative. This dynamic is particularly useful for analyzing the processes by which public policy instruments are delegitimized as they fall into disuse or are abolished in the name of a different rationality, of modernity, or of efficiency. For government élites, the debate on instruments may be a useful smokescreen to hide less respectable objectives, to depoliticize fundamentally political issues, to create a minimum consensus on reform by relying on the apparent neutrality of instruments presented as modern, whose actual effects are felt permanently.

Within that context, the process of "naturalization" or neutralization of policy instruments is one of the most intriguing questions for public policy analysts, and it requires a focus on power and interests. But a policy instrument is not a given, and it may face delegitimation over time—again, an interesting process to analyze. The whole point of focusing on policy instruments is also to make visible some of the invisible—hence depoliticized—dimensions of public policies. It also relates to the search for either invisible instruments or policy triggers (Weaver 1989) with automatic impacts.

We therefore argue that we need to look at the long-term political careers of policy instruments, to analyze the debates surrounding their creation and introduction, the ways they were modified, the controversies.

The contribution put forward in this special issue derives from empirical research projects on public policy instruments and policy change. All of them illuminate one or two key aspects of the framework we have put forward. There were chosen because they exemplify the added value of the "instrument approach" to analyze policy changes. The cases we present do not represent a broader set of cases in any kind of way. All of them, based upon original research project have used the political sociology of public policy instruments to analyze cases of policy change. Palier on welfare state reforms and Bezès on wage cutting within the administration present research done in France but they analyze their case within a broader comparative European context. Borraz on norms and standards

analyzes both the EU case and the French case in the same article, an original comparison that makes it easier to generalize. King's article is on the antidiscrimination instruments in the United States. There is no attempt either to represent a particular national type of regulation or public policy that would differ from one country to the next.

Can we generalize from that set of articles? Not yet for obvious methodological reasons. This is precisely the reason why we try to get more systematic results out of a new set of case studies and systematic analyses of policy sectors over time. However, for the time being, results of the four case studies we present here are consistent with the rest of our work.

Policy instruments are very effective indicator to understand and trace policy change over time. In other words, the policy instrument/instrumentation approach points to a stronger focus on the procedural concept of policy, centering on the idea of establishing policy instruments that enable the actors involved to take responsibility for defining policy objectives. In a political context where ideological vagueness seems to prevail—or, at least, ideology is less visible—and where differentiation between discourses and programs is proving more and more difficult, the view can be taken that it is now through public policy instruments that shared representations stabilize around social issues. And we can apply to the system of instrumentation what Desrosières (2002) says about statistics, when he expresses the view that they structure the public space by imposing categorizations and preformatting debates that are often difficult to bring into the discussion: "They give us a scale to measure the levels at which it is possible to debate the objects we need to work on."⁸

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Notes

1. See the interesting EU website on European governance: <http://europa.eu.int/comm/governance>

2. Desrosières also uses the expression "statistical instrumentation." A. Desrosières, *The Politics of Large Numbers, a History of Statistical Reasoning* (Cambridge, MA: Harvard University Press, 2002), 401.
3. Desrosières, *op. cit.*, p. 399.
4. This kind of property has already been demonstrated in Desrosières' works on the statistical tool, showing its active participation in the rationalization of modern states, or in Claude Raffestin's (1990) on the role of cartography in the construction of national identities and narratives. See also James Scott (1998).
5. "The metaphor of stage and audience . . . expresses nothing more than the ideas of distinction and independence between those who propose the terms of choice and those who make the choice" (Manin 1997, 226).
6. Manin 1997, 228–231.
7. See *Journal of European Public Policy* (2004) 11:2, Special Issue on the Open Method of Coordination, edited by S. Borraz.
8. Desrosières, *op. cit.*, p. 398.

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